



HARRIS VELÁZQUEZ GIBBENS

503-648-4777 ♦ 165 S.E. 26th Avenue Hillsboro, Oregon 97123 ♦ www.harrislawsite.com

DATE

Washington County District Attorney's Office
150 North First Avenue, Suite 300
Hillsboro, Oregon 97123

CONTRACT

RE: State v. ASHLE PENN
Case No. 24CR49043
Charge(s): Ct1 Theft I, Ct2 Unlawful Poss.
Of Meth

Dear Sir or Madam:

Please consider this a written request for a speedy trial pursuant to ORS 135.745 through 135.773 and pursuant to ORS 135.805 through 135.815 for discovery in this case.

In addition to all information required to be disclosed by said statutes, please provide the following:

1. The names and addresses of persons whom he intends to call as witnesses at any stage of the trial, together with their relevant written or recorded statements or memoranda of any oral statements of such persons.
2. Any written or recorded statements or memoranda of any oral statements made by the defendant, or made by a co-defendant if the trial is to be a joint one.
3. Any reports or statements of experts made in connection with the particular case, including results of physical and mental examinations and of scientific tests, experiments or comparisons which the District Attorney intends to offer in evidence at the trial.
4. Any books, papers, documents, photographs or tangible objects:
 - a. which the District Attorney intends to offer in evidence at the trial; or
 - b. which were obtained from or belonged to the defendant.
5. If actually known to the District Attorney, any record of prior criminal convictions of persons whom the District Attorney intends to call as witnesses at the trial.
6. Except as otherwise provided in ORS 135.855 and 135.873,
 - a. the occurrence of a search or seizure; and
 - b. any relevant material or information obtained thereby, the circumstances of the search or seizure and the circumstances of the acquisition of any specified statements from the defendant.
7. All prior convictions of the defendant known to the State that would affect the determination of the defendant's criminal history for sentencing under the rules of the State Sentence Guidelines Board.
8. If any alleged control substances were tested or seized by the State, Defendant hereby requests the District Attorney that the alleged controlled substances be sent to a state police forensic laboratory for analysis pursuant to ORS 475.235(3)(b). Further, the Defendant hereby notifies the District Attorney that the Defendant demands the right to cross-examine the state's witness and that Defendant has a constitutional right to confront the proponent of that evidence, the criminalist who performs testing of the alleged controlled substances and prepared a report on the purported results. State v. Birchfield, 342 Or. 624, 157 P3d 216 (April 19, 2007).
9. Any other evidence favorable to the defendant that is material to the defendant's guilt or punishment.

Sincerely,
Sunny Sidman
Attorney at Law

SS:nb

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

Case No: 24CR49043

State of Oregon
vs
ASHLE ANTOINETTE PENN

Order Re:
Court-Appointed Counsel

Case Type: Offense Felony

The court orders as follows:

The applicant's request for court-appointed counsel is:

☐	Denied
☒	Approved (attorney name): ODAC is appointed as counsel for the defendant, contingent upon further verification
☒	Attorney contract or fee disputes shall be referred to the Presiding Judge
☐	Continue previous appointment of counsel

The \$20 Application Fee is:

☐	Ordered , in the amount shown on the related Limited/Supplement Judgment of the court
☐	Waived

The Contribution Amount of , is:

☐	Ordered , in the amount shown on the related Limited/Supplement Judgment of the court
☐	Waived

9/19/2024 1:41:58 PM

Elizabeth R Lemoine

Circuit Court Judge, Elizabeth R Lemoine

By Deputy Clerk: *BR*

WASHINGTON COUNTY COURTHOUSE

Indigent Defense Verification Office

COMPLETE FOR YOUR COURT-APPOINTED ATTORNEY

Complete El Siguiente Formulario Para Recibir Un Abogado De Oficio

Please Print/Favor de escribir con letra de-molde

Who is your court-appointed attorney now? _____ None: _____

Date/Fecha: 09/18/2024 ☒ In Custody/Detenido ☐ Out of Custody/No Detenido

Date of Birth/Fecha de Nacimiento: 02/15/1988

Interpreter Needed? / Necesita Interprete? ☐ Yes ☒ No _____
1st Language

Have you ever served in the military? ☐ Yes ☒ No

Name/Nombre: PENN, ASHLE ANTOINETTE

Last/Apellidos

First/Primer Nombre

Middle/Segundo Nombre

Home Address/Direccion de Casa: 2850 SW CEDAR HILLS BLVD 234

Street Address/Numero y Calle

Apt#/De Departamento

BEAVERTON, OR 97005

City/Ciudad

State/Estado

Zip/Codigo Postal

Mail Address/Direccion de Correos: _____

*If different/si es diferente

Street Address/Numero y Calle

Apt#/De Departamento

City/Ciudad

State/Estado

Zip/Codigo Postal

Cell Phone/Telefono Movil: (424) 242-3374

Email Address/Direccion en el Internet: _____



HARRIS VELÁZQUEZ GIBBENS

503-648-4777 ♦ 165 S.E. 26th Avenue Hillsboro, Oregon 97123 ♦ www.harrislawsite.com

September 27, 2024

AshLe' Penn
ashle.penn.ap3@gmail.com

*RE: State of Oregon v. AshLe' Penn
Washington County Case No. 24CR27775, 24CR49043*

Dear Ms. Penn:

Our office has been appointed to represent you in the above referenced criminal matter and we have received notice of an upcoming court appearance in your case:

Change of Plea Hearing: October 10, 2024, at 1:00 p.m.
Trial Readiness Hearing: November 12, 2024, at 1:30 p.m.
Trial: November 20, 2024, at 9:00 a.m.

The above hearings are court appearances. You must be present at **Washington County Courthouse located at 145 NE 2nd, Hillsboro, Oregon** and on time for all scheduled court appearances. Failure to appear may result in the court issuing a warrant for your arrest and withdrawing your court appointed counsel. **Please call the office the day before your hearing to confirm what courtroom you need to be in.**

You must dress appropriately for court. DO NOT wear shorts, tank tops, hats and/or sunglasses.

Please remember that it is your responsibility to call and schedule an appointment to talk to your attorney, Sunny Sidman. You should do this prior to your next court appearance.

It is also your responsibility to keep in contact with your attorney and cooperate fully in your defense. This includes notifying our office immediately of any change in address or telephone numbers.

If you have any questions regarding this notice, please feel free to call our office.

Sincerely,

Sam O'Doherty
Legal Assistant

STATE OF OREGON

ORDER

Plaintiff

vs.

Ashle Antoinette Penn

Defendant

Truly named. ☐

Proceeded as named.

Case No:

24CR49043

DA:

Erwin

Defense Attorney:

Stefania Thayne

Interpreter:

Language:

FTR Courtroom:

105C

Proceeding:

Prelim

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☐ In Custody
Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived
OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____
by: Telephone / Letter / Motion / Attorney
☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.
☐ Guilty / No Contest Plea with Sentencing on _____ at _____
☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present
☐ Allowed ☐ Ineligible Counts/Charges: _____
☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s):

☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____
☐ Final Resolution Conference ☒ 10-10-24 on COP at 1pm (ccc)
☐ Case Assignment ☐ _____ on _____ at _____
☐ Trial ☐ _____ on _____ at _____

Preliminary Hearing:

☒ Prelim Waived ** By: △

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____
☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time
☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____
☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____
☐ Other: _____

Date:

9-26-24

Judge:

C. Colburn

COLBURN



HARRIS VELÁZQUEZ GIBBENS

503-648-4777 ♦ 165 S.E. 26th Avenue Hillsboro, Oregon 97123 ♦ www.harrislawsite.com

September 27, 2024

AshLe' Penn
ashle.penn.ap3@gmail.com

*RE: State of Oregon v. AshLe' Penn
Washington County Case No. 24CR27775, 24CR49043*

Dear Ms. Penn:

Our office has been appointed to represent you in the above referenced criminal matter and we have received notice of an upcoming court appearance in your case:

Change of Plea Hearing: October 10, 2024, at 1:00 p.m.
Trial Readiness Hearing: November 12, 2024, at 1:30 p.m.
Trial: November 20, 2024, at 9:00 a.m.

The above hearings are court appearances. You must be present at **Washington County Courthouse located at 145 NE 2nd, Hillsboro, Oregon** and on time for all scheduled court appearances. Failure to appear may result in the court issuing a warrant for your arrest and withdrawing your court appointed counsel. **Please call the office the day before your hearing to confirm what courtroom you need to be in.**

You must dress appropriately for court. DO NOT wear shorts, tank tops, hats and/or sunglasses.

Please remember that it is your responsibility to call and schedule an appointment to talk to your attorney, Sunny Sidman. You should do this prior to your next court appearance.

It is also your responsibility to keep in contact with your attorney and cooperate fully in your defense. This includes notifying our office immediately of any change in address or telephone numbers.

If you have any questions regarding this notice, please feel free to call our office.

Sincerely,

Sam O'Doherty
Legal Assistant



HARRIS • VELÁZQUEZ • GIBBENS

ATTORNEYS AT LAW

Phone: 503-648-4777/Fax: 503-648-0989 ♦ 165 S.E. 26th Avenue Hillsboro, Oregon 97123 ♦ www.harrislawsite.com

September 20, 2024

ASHLE' ANTOINETTE PENN
ashle.penn.ap3@gmail.com

*RE: State of Oregon v. ASHLE' ANTOINETTE PENN
Washington County Case No. 24CR49043, 24CR27775*

Dear AshLe' Antoinette Penn:

Our office has been appointed to represent you in the above referenced criminal matter and we have received notice of an upcoming court appearance in your case:

Preliminary Hearing: September 26, 2024 at 3:00 PM
Trial Readiness Hearing: November 12, 2024 at 1:30 PM
Trial: November 20, 2024 at 9:00 AM

The above hearing(s) is/are court appearance(s). You must be present at **Washington County Courthouse located at 145 NE 2nd, Hillsboro, Oregon** and on time for all scheduled court appearances. Failure to appear may result in the court issuing a warrant for your arrest and withdrawing your court appointed counsel. **Please call the office the day before your hearing to confirm what courtroom you need to be in.**

You must dress appropriately for court. DO NOT wear shorts, tank tops, hats and/or sunglasses.

Please remember that it is your responsibility to call and schedule an appointment to talk to your attorney, Sunny Sidman. You should do this prior to your next court appearance.

It is also your responsibility to keep in contact with your attorney and cooperate fully in your defense. This includes notifying our office immediately of any change in address or telephone numbers.

If you have any questions regarding this notice, please feel free to call our office.

Sincerely,

Nathan Bloeman
Legal Assistant

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

State of Oregon vs ASHLE ANTOINETTE PENN

ORDER

Case No: 24CR49043

Proceeding: Arraignment

FTR Courtroom: LEC1

☐ Citation ☐ Release Agreement

The following persons appeared:

Defendant: ASHLE ANTOINETTE PENN

Attorneys: DA: Hill

Defense Atty: Garcia

☒ Appointed:	☐ CLG	☐ HLG	☐ MPD	☒ ODAC	☐ OPDC	☐ R&A
☐ Retained:	☐ To be Retained		☐ Waived Attorney			
☐ Interpreter:	☐ DUII Advisory Coun.		☐ Deferred Sentencing Coun.			
☐ Spanish ☐ Other:						

Defendant:

If you are arraigned on a Domestic Violence or Sex Crime, you are **prohibited** from contacting the named victim even while in custody.

☐ Appeared by counsel	☒ In Custody	☐ Out of Custody
☐ Reset to: at the request of:		
☐ Name corrected – True name:		
☐ Waived speedy constitutional trial/ 60-day rights for this continuance or waiver of 14-day for Probation Viol. Hrg.		
☐ Waived Extradition	☐ Requested Governors Warrant	

Arraignment:

☒ Defendant given copy of charging instrument	☒ Arraigned	☒ Rights Given	☐ Waived
☐ Book and release unless a crime under Measure 11, ORS 137.700, including out-of-county bookings. New release agreement with standard conditions is required for out-of-county book and release.			

Preliminary Hearing:

☐ Prelim Waived By:	☐ Probable cause found on Ct(s):	☐ Probable cause not found on Ct(s):
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Plea:

☐ Not Guilty	☐ Guilty	☐ Deny	☐ Admit	☐ No Contest
☐ Failed to Appear				
☐ Revoke Release	☐ Bench Warrant Ordered	☐ Arrest Warrant Ordered	☐ Security Amt:\$	
☐ Judgment of Dismissal				
☐ Other:				

Next Court Appearance:

Preliminary Hg 09-26-2024 at 3:00PM

9/19/2024 2:37:07 PM

Elizabeth R Lemoine
Circuit Court Judge, Elizabeth Lemoine

CONFLICT CHECK / CASE MANAGEMENT

		Prior Contact
Client:	AshLe Penn 24CR49043	Yes/No
Adverse Party:		Yes / No
Adverse Party:		Yes / No
Adverse Party:		Yes / No
Adverse Party:		Yes / No
Witnesses:	Sarah Fillis	Yes / <u>No</u>
	Barry Washington	Yes / <u>No</u>
	Neils Caron	Yes / <u>No</u>
	Moranda Rasmussen	Yes / <u>No</u>
		Yes / No

Evidence Viewed / Needed

Issues Needed to be Addressed

NOTES TO STAFF TO DO: _____

Reports Mailed/Emailed to Client: _____

Intake Check (date and initial): _____

IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR WASHINGTON COUNTY

STATE OF OREGON,

Plaintiff,

vs.

ASHLE ANTOINETTE **PENN**,

Defendant.

No.

**DISTRICT ATTORNEY'S
INFORMATION**

The above-named defendant is accused by this information of the crime(s) of

Count 1: THEFT IN THE FIRST DEGREE (FSG= 3; C Felony; ORS 164.055)

Count 2: UNLAWFUL POSSESSION OF METHAMPHETAMINE (A Misdemeanor; ORS 475.894 (2)(b))

committed as follows:

COUNT 1

The defendant, on or between September 17, 2024 and September 18, 2024, in Washington County, Oregon, did unlawfully commit theft of merchandise, of the value of one thousand dollars or more, the property of Target.

COUNT 2

As part of the same act and transaction and part of crimes that are of the same or similar character and a common scheme and plan as Count 1: The defendant, on or about September 18, 2024, in Washington County, Oregon, did unlawfully and knowingly possess two grams or more of a mixture or substance containing a detectable amount of methamphetamine.

contrary to the statutes and against the peace and dignity of the State of Oregon.

It is hereby affirmatively declared for the record, upon appearance of the defendant for arraignment, and before the Court asks how the defendant pleads to the charges, that the State intends that any misdemeanor offenses charged herein each proceed as a misdemeanor.

Dated: September 19, 2024

KEVIN BARTON, District Attorney

By: 

Alicia Gerten, OSB # 204744

Deputy District Attorney

ECR Eligible

DA #437558

HBS 50-2413459

DOB 02/15/1988

FPC #: JWAS224065036

Appear – In Custody

☐ Requesting Preventative Detention